

TENTATIVE RULING FOR August 12, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2424412

KYO NAM KIM v. AMERICAN HONDA MOTOR CO., INC.

TENTATIVE RULING

Plaintiff Kyo Nam Kim filed a Complaint on July 31, 2024, against Defendant American Honda Motor Co., Inc., alleging three causes of action for: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1792.2; and (4) breach of the implied warranty of merchantability. Plaintiff alleges that he purchased a vehicle manufactured by Defendant in 2018 with infotainment and electrical system defects. (Compl. ¶¶ 9, 12.) Defendant answered on September 17, 2024.

Now before the Court are Defendant's four motions for a protective order to excuse Defendant from responding to Plaintiff's first set of form interrogatories, special interrogatories, requests for production of documents, and requests for admission. Plaintiff opposes the motions. Defendant replied.

A responding party may move for a protective order associated with propounded interrogatories, document demands, or requests for admissions. (Code Civ. Proc., §§ 2030.090, subd. (a), 2031.060, subd. (a), 2033.080, subd. (a).) For good cause, the court may make any order to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., §§ 2017.020, subd. (a), 2030.090, subd. (b), 2031.060, subd. (b), 2033.080, subd. (b).) The moving party bears the burden of establishing good cause. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.)

The issued protective order may include several different directives, including that certain propounded discovery requests need not be answered or that the time specified to respond is extended. (Code Civ. Proc., §§ 2030.090, subd. (b), 2031.060, subd. (b), 2033.080, subd. (b).) If the motion is denied, then the Court may order that the responding party provide or permit the discovery against which protection was sought on terms and conditions that are just. (Code Civ. Proc., §§ 2030.090, subd. (c), 2031.060, subd. (g), 2033.080, subd. (c).)

Analysis

The discovery requests at issue are described by both parties as “standard, garden-variety discovery.” (Mot. at p. 4; Opp. at p. 2.) The requests were served on August 26, 2024. (Canton Decls. Ex. E.) The parties agreed to stay discovery such that the responses were due thirty days after settlement efforts failed. (Canton Decls. Ex. A.)

On March 16, 2026, Plaintiff’s counsel emailed Defendant’s counsel that they are “no longer staying discovery in this case” and requested responses by April 15, 2026. (Canton Decls. Ex. C.) Defendant’s counsel responded with an assertion that Plaintiff was a member of the class in the *Conti* Class Action and did not opt out, so his claims are barred. (*Ibid.*) [The *Conti* Class Action is *Conti v. American Honda Motor Co.*, Case No. 2:19-CV-2160-CJC-GJS, which was filed in 2019 in the Central District of California and settled. (Mot. at p. 3.) The deadline to opt out was in 2021. (*Ibid.*)]. Then, on March 23, 2026, Plaintiff’s counsel emailed Defendant’s counsel to state that they requested responses by close of business on March 25, 2026. (Canton Decls. Ex. B.)

During a hearing on April 2, 2026, Plaintiff moved to continue the trial date and discovery deadlines. Defendant objected and contended that the class action issue was in dispute, that Plaintiff was seeking broad discovery beyond that issue to increase the cost of litigation, and that the discovery cutoff date should not be continued. (Hairapetian Decls. ¶ 5.) The Court continued the trial date and all related deadlines over Defendant’s objection, and the Court “advised the parties that in the event that Plaintiff sought discovery unrelated to the *Conti* Class Action and related class action bar, the Court anticipated Honda would seek a protective order.” (*Ibid.*) The parties later stipulated to another continuance of the trial date and pre-trial deadlines, and the trial date is currently April 19, 2027.

Defendant maintains that Plaintiff is a member of the class in the *Conti* Class Action, that he received notice, and that he did not opt out, so his present claims are barred. (Mot. at p. 3.) Plaintiff disputes that his claims are barred; he “is not certain whether he opted out, and Plaintiff’s counsel has specifically asked for evidence from the settlement administrator to resolve the question.” (Opp. at pp. 2-3.) The parties are still waiting on that evidence from the settlement administrator. (Opp. at p. 7.)

It is Defendant’s burden to show good cause for a protective order, and here, Defendant argues that there is good cause to excuse a response to garden-variety discovery requests that are unrelated to the *Conti* Class Action issue that might bar Plaintiff’s claims. (Mot. at pp. 5-6.)

Plaintiff responds that: (1) Defendant has not specified how the response would be burdensome; (2) the class action issue is in dispute, so it should not control discovery in this case; (3) even if Plaintiff were bound by the class action settlement, he seeks different relief here, so his claims would not be barred; (4) his claims also would not be barred because Defendant did not plead *res judicata* or collateral estoppel as affirmative defenses in its answer; and (5) the discovery requests are relevant. (Opp. at pp. 6-11.)

First, Defendant has adequately shown that responding to the “standard, garden-variety” discovery requests would be burdensome, for it would take a substantial amount of attorney time to respond in the context of having a class action defense. (Hairapetian Decl. ¶ 10.) Second, Defendant has articulated

how the class action issue might determine the outcome of this case—if Plaintiff did not opt out, and if Plaintiff does not dismiss the case, Defendant will file a motion for summary judgment. (Reply at p. 3.) Because the class action issue might limit the controversy in this case, it is relevant to the scope of discovery. Third and fourth, Plaintiff foreshadows legal arguments he might make in defense of a summary judgment motion if there is evidence that he did not opt out. Those arguments could be litigated in that context at the proper time, but for now, Plaintiff concedes that there may or may not be evidence that he was a member of the class and did not opt out, so the issue of whether his claims are barred is genuinely in dispute. (Opp. at pp. 6-7.) Finally, Plaintiff contends that the standard, garden-variety discovery requests served in August 2024 are relevant to the class action issue, but Defendant replies that Plaintiff could serve the same limited discovery his counsel has served in other similar cases to determine if Plaintiff received notice of the class action and opted out. (Hairapetian Reply Decl. ¶ 6.)

On reply, Defendant also produces the opt-out list for the *Conti* Class Action and states that Plaintiff's name does not appear on it. (Hairapetian Reply Decl. ¶ 7.) However, Plaintiff has not had the opportunity to respond to that evidence offered for the first time on reply.

For good cause shown, the Court “may make any order that justice requires,” which may include extending the time to respond to the discovery requests. (Code Civ. Proc., §§ 2030.090, subd. (b)(3), 2031.060, subd. (b)(2), 2033.080, subd. (b)(3).) Plaintiff's arguments regarding different remedies and failure to plead *res judicata* in the answer are noted, but nonetheless, there is a realistic possibility that the controversy in this case might be limited to whether Plaintiff was a member of the *Conti* Class Action, whether he received notice, and whether he opted out. Defendant ultimately intends to file a motion for summary judgment if Plaintiff did not opt out. Accordingly, there is good cause to extend the deadline to respond to the garden-variety discovery requests served on August 26, 2024, until the class action issue is decided.

Plaintiff argues he has requested evidence from the settlement administrator, and that evidence may “resolve the question.” (Opp. at pp. 2-3.) Additionally, in other cases, Plaintiff's counsel has previously served discovery requests limited to this class action issue. (Hairapetian Reply Decl. ¶ 6.) The trial in this case is set for April 19, 2027.

The Court intends to allow the Defendant time to file a motion for summary judgment on the issue of a potential class action bar to the present action, by permitting the parties time to gather evidence regarding the *Conti* action resolution. Consequently, the court will extend Defendant's time to respond to the discovery requests in the following manner: The court will allow up to and including November 2, 2026, for Defendant to file a motion for summary judgment. In the intervening time, the limited protective order will remain in place to the extent that the parties can conduct discovery restricted to the issue of whether the resolution reached in the *Conti* Class Action bars Plaintiff's present claims. If Defendant files a motion for summary judgment within the allotted time period, then the discovery response deadline is stayed pending determination of the summary judgment motion. If Defendant does not timely file a motion for summary judgment by November 2, then this limited protective order is vacated and defendant's responses to plaintiff's pending discovery are due thirty days later, or by December 2, 2026.

In summary, there is good cause to extend the deadline to respond to the garden-variety discovery requests. Allowing the parties time to resolve the class action dispute by limited discovery and/or a motion for summary judgment may narrow the scope of this case or may otherwise be dispositive.

TENTATIVE RULING

The court grants Defendant's motion for a protective order. The parties shall be permitted to conduct limited discovery on the issue of whether the *Conti* Class Action bars Plaintiff's present claims. If Defendant files a motion for summary judgment on or before November 2, 2026, then the deadline for Defendant to respond to Plaintiff's August 26, 2024 discovery requests is stayed pending resolution of the summary judgment motion. If Defendant fails to file a motion for summary judgment on or before November 2, 2026, then responses to all of Plaintiff's pending discovery are to be served by December 2, 2026.

The hearings on plaintiff's pending motions to compel responses to discovery and to deem admitted the truth of matters in Requests for Admissions, currently set for August 27, 2026, are vacated without prejudice.

Defendant to give notice of the court's ruling.